



File No.: EXP202411409

RESOLUTION FOR TERMINATION OF THE PROCEDURE BY RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 25, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against SERVICIOS ESPECIALES, S.A. (hereinafter, SERVICIOS ESPECIALES), through the agreement transcribed below:

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AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 3, 2024, and August 6, 2024, Ms. A.A.A., with ID No. ***NIF.1 (claimant 1) and Mr. B.B.B., with ID No. ***NIF.2 (claimant 2), filed separate complaints with the Spanish Agency for Data Protection. The complaints are directed against SERVICIOS ESPECIALES, S.A., with NIF A11001450 (hereinafter, the respondent). The reasons for the complaint are as follows: claimant 1 indicates that the respondent company has published that she is a complainant in a workplace harassment process, disclosing her full name along with the word "complainant."

On April 15, 2024, the Works Council requested the company to open a workplace harassment protocol due to a series of events, with the claimant expanding on the facts concerning her through an email from her personal address to the instructing committee, with which she conducted several interviews.

The claimant reports that the company opened a harassment protocol on May 6, 2024, with 5 complainants and 10 respondents.

On July 31, 2024, the company sent an email to the Works Council informing that it considered the instruction concluded, attaching the resolution to each of the complainants, totaling 5, thereby revealing the identity of each complainant, where their names, surnames, and job positions are exposed, including that of the claimant.

The claimant states that it is the Works Council that forwards the email with the resolution to her.

At the same time, the company sent the same resolutions (identifying complainants and respondents) to the entire list of individuals, making them clearly identifiable (a total of 15 people).

The claimant points out that the entire workplace knows she is one of the complainants and is aware of the respondents, a fact that led one of the respondents to post a kiss emoji and the phrase "Thanks for the complaint" in a work WhatsApp group on the same day the resolution was known.

The claimant indicates that on that same day she suffered an anxiety attack, resulting in medical leave. The claimant states that in another WhatsApp group, a third party informs that an email has been sent exposing who the complainants and respondents are, thus failing to maintain the supposed confidentiality of the complainant's information.

The claimant asserts that she did not authorize the disclosure of her identity.

She provides:

- a) complaint letter to the AEPD, dated August 3, 2024;
- b) email from a worker of the respondent company to the Works Council informing of the closure of the harassment complaint investigation filed by them, communicating the closure of the five complainants' files, dated July 31, 2024;
- c) email from the Works Council to a union, communicating the closure of the five complainants' files, dated August 2, 2024;
- d) letter from the Instructing Committee in the name of the claimant, identifying the 5 complainants and the 10 respondents, dated July 31, 2024;
- e) 2 screenshots of conversations from 2 work WhatsApp groups, with undetermined dates.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on August 12, 2024, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on August 13, 2024, as evidenced by the acknowledgment of receipt in the file. In response to the aforementioned transfer dated September 13, 2024, the respondent has summarized the following: first, it provides a chronological exposition of...

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the facts and, upon analyzing the issue from the perspective of data protection, it is concluded that it is not possible to appreciate a violation of the legislation in this matter, and this is due to the fact that all interested parties were fully aware of all the identities of the affected individuals from the very beginning. Nevertheless, the responding party acknowledges in its protocols to protect the confidentiality invoked by any person entitled to file a complaint with the company. Furthermore, it is the first interested party in providing all means at its disposal to pacify and resolve a conflict in which it is an external party, seeking in any case to recover a full labor peace as this is its only interest at stake; for this purpose, all measures deemed appropriate have been adopted to avoid or at least make it difficult for this situation to recur in the future.

The responding party has also pointed out that a significant fact was that the complaint that initiated the internal procedure was raised by the works council without invoking the right to anonymity of the complainants, nor did they request it.

The responding party has decided to adopt preventive and remedial measures: among the former, an information program and a specific seminar for the members who must integrate the various committees regarding the scope of the rights of the interested parties, including the matter of personal data protection, and among the latter, a text of apology has been approved which is sent to the affected individuals explaining what occurred and reaffirming the internal policy of maximum confidentiality.

THIRD: On 03/11/2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complaining party was admitted for processing.

FOURTH: According to the report collected from the AXESOR tool, the entity SERVICIOS ESPECIALES, S.A. is a company established in 1951, with a turnover of ***AMOUNT.1 in the year 2023.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Likewise, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the

alleged infringement committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file of actions will be archived, in accordance with the provisions of Article 64 of the LOPDGGD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

Article 4.1) of the GDPR defines “personal data” as: “any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

Article 4.2) of the GDPR defines “processing” as: “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction.”

Article 4.7) of the GDPR defines the “data controller” or “controller” as: “the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law.” Likewise, Article 4.8) of the GDPR defines the “processor” or “processor” as the natural or legal person, public authority, agency, or other body that processes personal data on behalf of the controller.

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the party

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The respondent carries out, among other treatments, the collection and storage of personal data of individuals: name, surname, job position, among others.

The respondent conducts this activity in its capacity as the data controller, as it is the one that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

IV

Unfulfilled obligation: infringement of Article 5.1.f) of the GDPR

The facts revealed in the complaint materialize in that during a workplace harassment procedure where the complainant is the whistleblower, the respondent has sent the closure resolutions of the procedure in such a way that both the whistleblowers and the accused have had access to each other's identities, which could violate the regulations on the protection of personal data.

Article 5 of the GDPR, “Principles relating to processing,” establishes in its paragraph 1, letter f) that: “1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures (‘integrity and confidentiality’).”

(...)

The documentation in the file provides clear indications that the respondent violated Article 5 of the GDPR, principles relating to processing, by allowing access to personal data, thereby breaching their confidentiality, so that the parties involved in the procedure, both whistleblowers and accused, have had access to each other's identities.

In this case, the facts complained of stem from the communication on 03/05/2024, to the members of the Investigative Commission in harassment processes, of the harassment complaint, in order to

proceed with the actions deemed appropriate, resulting from the "Protocol for the prevention and action against psychological harassment and discriminatory harassment in the company."

The complaint identified those responsible for alleged behaviors that could be considered as potentially constituting harassment under the terms established in the aforementioned protocol, which is why the Investigative Commission has carried out the corresponding inquiries to clarify the complaint.

Once the procedure was initiated and after the investigations carried out, the Investigative Commission issued a report concluding that the complaint could not be classified as workplace harassment. The aforementioned report contains the identifying data of the whistleblowers and the accused.

The complainant in their document dated 03/08/2024 stated that "On Wednesday, July 31, 2024, the company sent an email to the email of the Works Council (attached as Document No. 1) concluding the investigation, attaching the resolution to each of the whistleblowers, 5 in total, thus revealing the identity of each of the whistleblowers, where their names and surnames and their job positions and those accused, including mine, are exposed. It is the email from the Works Council itself that forwards me the email with my resolution. At the same time, the company sends the same resolutions (identifying whistleblowers and accused) to the entire list of people, making them clearly identifiable. A total of 15 people."

The respondent in its response dated 13/09/2024 has acknowledged regarding the incident that "While it is true that Servisa includes in its internal guidelines the protection of confidentiality in the processing of this type of files, the reality surrounding the present procedure is that there was not even the mere possibility of an unknown identity for the reasons, moreover, evident, already pointed out."

Therefore, it follows from the processing of the workplace harassment procedure in the company that the respondent sends the resolution of the procedure in such a way that all the whistleblowers and the accused have had access to each other's identities, compromising their identity and the confidentiality of their data.

In accordance with the available indications, it is considered that the facts complained of could constitute an infringement attributable to the respondent, for violation of Article 5.1.f) of the GDPR.

V

Qualification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of prescription

In accordance with the evidence available and without prejudice to what results from the instruction, it is considered that the respondent did not adequately guarantee the confidentiality of personal data.

The infringement attributed to the entity is classified under Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is subject to sanction, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 constitute infringements."

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Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

And in its Article 72, it considers for the purposes of prescription that: "Very serious infringements:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

(...)

a) The processing of personal data violating the principles and guarantees established in Article 5 of

Regulation (EU) 2016/679.

(...)”

VI

Proposal for sanction for the infringement of Article 5.1.f) of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;

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h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” establishes that:

“2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution

mechanisms, in cases where there are disputes between them and any data subject.”

In this case, considering the seriousness of the possible infringement, especially taking into account the consequences that its commission causes to the affected parties, the imposition of a fine, in addition to the adoption of measures, if appropriate, would be warranted.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the turnover of the claimed party, which in the fiscal year 2023 amounted to ***AMOUNT.1, is considered in advance. For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to grade the sanction to be imposed according to the following circumstances, contemplated in the aforementioned provisions:

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The nature and severity of the infringement, as it must be taken into account that the treatment carried out allowed access to the personal data of the complainants and defendants in a workplace harassment process, and, therefore, the seriousness of the behaviors manifested in this type of proceedings (Article 83.2.a) of the GDPR).

The intentionality or negligence in the infringement. There is a lack of diligence in complying with the obligations imposed by data protection regulations, as it enabled access to personal data, violating its confidentiality; in this regard, the SAN of 17/10/2007 can be cited, which, although issued before the GDPR came into force, its ruling is perfectly extrapolatable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that “(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard” (Article 83.2.b) of the GDPR).

The degree of negligence in this case is considered high, given the nature of the personal data revealed (status as complainant or defendant in a workplace harassment process) and the special confidentiality requirements that must be respected in workplace harassment processes.

For the purpose of deciding on the fine and its amount, in accordance with the available evidence, taking into account the criteria of Article 83.2 of the GDPR regarding the infringement committed, violation of Article 5.1.f) of the GDPR, a sanction of 200,000 euros is deemed appropriate.

VII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.f) of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”

Thus, the responsible entity may be required to align its actions with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

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In this act, the presumed infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures should be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully understands its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGGD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment regarding the initiation of sanctioning proceedings, the resolution adopted may require the complained party to adopt appropriate measures to ensure the confidentiality of personal data within a period of 3 MONTHS, starting from the date of effectiveness of the resolution concluding this procedure, in accordance with the provisions of Article 5.1.f) of the GDPR and with the scope expressed in the previous Legal Grounds.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this body in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the opening of further administrative sanctioning proceedings.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or to correct the effects of the infringement committed and to demonstrate to this AEPD compliance with that obligation.

Therefore, in light of the above,

By the Presidency of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEEDINGS against SERVICIOS ESPECIALES, S.A. with NIF A11001450, for the presumed infringement of Article 5.1.f) of the GDPR, classified in Article 83.5.a) of the GDPR.

SECOND: TO APPOINT R.R.R. as Instructor and S.S.S. as Secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, the documents.

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obtained and generated during the admission phase; all of which are part of the file.

FOURTH: THAT for the purposes provided in article 64.2 b) of Law 39/2015, of October 1, and article 58.2.b) of the GDPR, the sanction that may correspond for the violation of article 5.1.f) of the GDPR would be €200,000 (two hundred thousand euros), without prejudice to what results from the instruction.

FIFTH: NOTIFY this Agreement to SERVICIOS ESPECIALES, S.A. with NIF A11001450, expressly indicating their right to a hearing in the procedure and granting them a period of TEN WORKING DAYS to submit allegations and propose the evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number that appears in the heading of this document. In accordance with the provisions of article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €160,000 (one hundred sixty thousand euros), resolving the procedure with the imposition of this sanction. Likewise, they may, at any time

prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €160,000 (one hundred sixty thousand euros), and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made manifest within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €120,000 (one hundred twenty thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. For these purposes, in the event of opting for any of them, they must send to the Subdirector General of Data Inspection an express communication of the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (€160,000 or €120,000), they must do so by depositing it into account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are adhering.

Likewise, they must send the proof of payment to the Subdirector General of Inspection along with the communication of the withdrawal or waiver of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited.

In compliance with articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, the notifications sent to them will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if they do not access them, their rejection will be recorded in the file, considering the procedure completed and continuing the process. They are informed that they can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that in accordance with the provisions of article 112.1 of the LPACAP, there is no administrative appeal against this act.

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with article 48.2 of the LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency position.

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SECOND: On March 4, 2025, SERVICIOS ESPECIALES proceeded to pay the sanction in the amount of €120,000.00 making use of the two reductions provided in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility in relation to the facts referred to in the initiation agreement and its legal qualification.

THIRD: The initiation agreement transcribed above indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction can be imposed along with a non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

III

Voluntary Payment and Acknowledgment of Responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making a voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be established at 120,000.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, SERVICIOS ESPECIALES has proceeded to acknowledge responsibility and make a voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with paragraph 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES: FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions

determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total of 200,000.00 euros.

After SERVICIOS ESPECIALES, S.A. has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, resulting in a final amount of 120,000.00 euros.

The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or renunciation of any action or administrative appeal.

SECOND: TO DECLARE the termination of procedure EXP202411409, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER SERVICIOS ESPECIALES, S.A. to notify the Agency of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution within 3 months from the date this resolution becomes final and enforceable.

FOURTH: TO NOTIFY this resolution to SERVICIOS ESPECIALES, S.A.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility to the withdrawal...

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or waiver of any action or remedy in the administrative pathway, this resolution shall be final in the administrative pathway and fully enforceable from the date of its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

1259-260325

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